

SENATE BILL 2704

By Southerland

AN ACT to amend Chapter 103 of the Acts of 1903; as amended and rewritten by Chapter 64 of the Private Acts of 2024; and any other acts amendatory thereto, relative to the City of Morristown.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Chapter 103 of the Acts of 1903, as amended and rewritten by Chapter 64 of the Private Acts of 2024, and any other acts amendatory thereto, is amended by deleting the second paragraph of Section 2 of Article I and substituting instead:

No person shall be elected to the council unless they are at least twenty-one (21) years of age by the election date, or to the office of mayor unless they are at least twenty-one (21) years of age by the election date, and whether council member or mayor, shall be a citizen of the State of Tennessee, and a bona fide resident of the city for at least one (1) year immediately preceding the election date. The six (6) council member positions shall be filled by six (6) distinct elections and shall be voted for and elected by all voters of the city. The six (6) council member positions shall be identified as Council Seats 1, 2, 3, 4, 5, and 6. The mayoral position shall be designated as a separate position that is likewise voted for and elected by all voters of the city.

SECTION 2. Chapter 103 of the Acts of 1903, as amended and rewritten by Chapter 64 of the Private Acts of 2024, and any other acts amendatory thereto, is amended by deleting the first paragraph of Section 3 of Article I and substituting instead:

Beginning in the year 2024, the terms of all sitting council members and mayor shall be extended such that council members previously representing the first ward and the third ward, having last been elected in May of 2021 and the at-large member last elected in May of 2021, may remain in their capacities until their successors are elected and seated, said elections to be held the first Tuesday following the first Monday in

November of 2026, and that the mayor and council members previously representing the second ward and the fourth ward, having last been elected in May of 2023 and the at-large member last elected in May of 2023, may remain in their capacities until their successors are elected and seated, said elections to be held the first Tuesday following the first Monday in November of 2028.

The council members previously representing the first ward, the third ward, and the at-large member, having last been elected in May of 2021 shall hereafter be identified as the members holding Council Seats 1, 2, and 3, respectively.

The council members previously representing the second ward, the fourth ward, and the at-large member, having last been elected in May of 2023 shall hereafter be identified as the members holding Council Seats 4, 5, and 6, respectively.

A transition seating newly elected council members and/or mayor shall occur on the last Monday of November following elections, provided elections have been certified by that date. Otherwise, a transition seating newly elected council members and/or mayor shall occur on the next Monday following such certification.

SECTION 3. This act shall have no effect unless it is approved by a two-thirds (2/3) vote of the legislative body of the City of Morristown. Its approval or nonapproval shall be proclaimed by the presiding officer of the City of Morristown and certified to the secretary of state.

SECTION 4. For the purpose of approving or rejecting the provisions of this act, it shall be effective upon becoming a law, the public welfare requiring it. For all other purposes, it shall become effective as provided in Section 3.